



SPONSOR: Rep. Lynn & Rep. Ortega & Sen. Hoffner & Sen. Pinkney
Reps. Burns, K. Johnson, Morrison, Neal, Phillips,
Snyder-Hall, Wilson-Anton, Gorman, Lambert

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 96

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO REPORTS FROM THE
DEPARTMENT OF JUSTICE TO THE DELAWARE GENERAL ASSEMBLY, GOVERNOR, AND OFFICE OF
LEGISLATIVE SERVICES REGARDING UNDOCUMENTED RESIDENTS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 2553, Title 29 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 2553. Division of Civil Rights and Public Trust; powers and duties.

(a) The Division of Civil Rights and Public Trust shall do all of the following:

(5) Provide a quarterly report to the Chief Clerk of the House of Representatives for distribution to all
members, the Secretary of the Senate for distribution to all members, the Governor, and the Director and Librarian of
the Office of Legislative Services, detailing any request from a federal agency, federal entity, or entity holding itself
out as a federal agency or entity, for assistance from any State law enforcement agency related to any of the following:

a. Information about the issuance of any driving privilege card from the Department of Transportation or
Division of Motor Vehicles.

b. Continuation or discontinuation of the Department of Education's migrant education program and
ensuring funding is set aside by the state in the event federal funding for migrant education is terminated.

c. Stopping any individual based purely on suspicion of undocumented status.

d. Assisting any federal immigration or law enforcement agency from any activity or operation in any
school or church.

e. School Resource Officer or constable assistance or participation in any federal law enforcement
activity related to immigration.

f. Dissemination of information about an undocumented student from the Department of Education and
any Delaware school district.

g. Release of information about an undocumented resident from the Department of Finance or Division of
Revenue.

SYNOPSIS

This Act requires the Division of Civil Rights and Public Trust of the Department of Justice to submit a quarterly report to the General Assembly, Governor, and Office of Legislative Services detailing any request from a federal agency or entity for assistance from any State law enforcement agency related to any of the following:

- a. Information about the issuance of any driving privilege card from the Department of Transportation or Division of Motor Vehicles.
- b. Continuation or discontinuation of the Department of Education's migrant education program and ensuring funding is set aside by the state in the event federal funding for migrant education is terminated.
- c. Stopping any individual based purely on suspicion of undocumented status.
- d. Assisting any federal immigration or law enforcement agency from any activity or operation in any school or church.
- e. School Resource Officer or constable assistance or participation in any federal law enforcement activity related to immigration.
- f. Dissemination of information about an undocumented student from the Department of Education and any Delaware school district.
- g. Release of information about an undocumented resident from the Department of Finance or Division of Revenue.